

23STCV00625 23STCV00625

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-20

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Case Number: 23STCV00625 Hearing Date: August 20, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Ashkan Derakhshan

;

Plaintiff,

vs.

LoanGuys.Com, Inc.

, et al.,

Defendants.

Case No.:

23STCV00625

Hearing Date:

August 20, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

for Summary Judgment or, in the alternative, Summary Adjudication

MOVING PARTY: Defendants Loanguys.com, Inc., Josh
Nouri, Isaac Nouri, and Ben Levy

RESPONDING

PARTY: Plaintiff Ashkan Derakhshan

Motion for Summary

Judgment or, in the alternative, Summary Adjudication

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

EVIDENTIARY

OBJECTIONS

The court

declines to rule on the evidentiary objections filed in connection with this
motion because the evidence subject to those objections is not material to the
court's disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

REQUEST

FOR JUDICIAL NOTICE

The court denies the requests for judicial notice made in connection with
this motion because the matters to which they pertain are not material to the
court's disposition of the motion. (Gbur v. Cohen (1979) 93 Cal.App.3d
296, 301 ("[J]udicial notice . . . is always confined to those matters which
are relevant to the issue at hand."].)

DISCUSSION

Defendants

Loanguys.com, Inc., Josh Nouri, Isaac Nouri, and Ben Levy ("Defendants") move the court for an order granting summary judgment or, in the alternative, summary adjudication of all causes of action asserted against them by plaintiff Ashkan Derakshan ("Plaintiff").

The court finds

that this motion is a renewed motion for summary judgment or summary adjudication for which Defendants have not established newly discovered facts or circumstances or a change of law supporting the issues reasserted in the motion. (Code Civ. Proc., § 437c, subd. (f)(2).) On March 12, 2026, the court denied Defendants' previous identical motion for summary judgment or summary adjudication for failure to demonstrate valid service of the motion on Plaintiff. (March 12, 2026 order, pp. 13-14.) In bringing the present motion, Defendants were required to establish "newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion." (Code Civ. Proc., § 437c, subd. (f)(2).) Contrary to Defendants' argument in reply, the requirements for a renewed motion under section 437c are not, by the statutory text, limited to motions which are denied on substantive rather than procedural grounds.

For this reason,
the court denies Defendants' motion for summary judgment or, in the alternative, summary adjudication.

ORDER

The court DENIES

defendants Loanguys.com, Inc., Josh Nouri, Isaac Nouri, and Ben Levy's motion for summary judgment or, in the alternative, summary adjudication.

The court orders plaintiff

Askhan Derakhshan to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 20, 2026

Robert B. Broadbelt III

Judge of the Superior Court